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California lawmaker wants Peeps to change its ingredients

April 7, 2023 | Press Democrat, The (Santa Rosa, CA)
Section: State | 826 Words
OpenURL Link

SACRAMENTO — This Easter, Americans will devour more than 1 billion Peeps — those radiant marshmallow chicks whose appearance on store shelves each year is as much a herald of spring as azaleas at the Masters.

What makes the treats so vibrant is erythrosine, a chemical that shows up on ingredient labels as Red No. 3. It's one of several chemicals, along with titanium dioxide, used to color some of the most popular candy in the country — including Skittles and Hot Tamales.

Both chemicals have been linked to cancer. More than 30 years ago, U.S. regulators banned Red No. 3 from makeup. The U.S. still has not banned the chemical from food, to the dismay of some consumer safety groups.

Now, a state lawmaker wants to ban erythrosine and titanium dioxide in California, plus three other chemicals used in everyday favorites like tortillas and some store brand sodas.

The bill, scheduled for its first public hearing next week, has prompted headlines around the world declaring California wants to ban Skittles and other candy. Assemblymember Jesse Gabriel, a Democrat who authored the bill, said he wants to ban the chemicals, not the candy. He said plenty of alternative ingredients are available, noting the chemicals are already banned in Europe and that companies still find a way to sell candy there.

"They still produce Skittles in other parts of the world. What they do is they take out these toxic ingredients, and they replace them with something else," Gabriel said. "What we really want is for these companies to make the same minor modifications to their recipes that they made in Europe and elsewhere."

The National Confectioners Association, the trade group that represents candy companies, says it's not that easy. Tastes vary across cultures, it said, meaning just because a candy is accepted by Europeans doesn't mean it will be received well in the United States. Plus, changing ingredients would be a hardship for regional candy makers who don't sell their products overseas, according to the trade group.

"There's a lot more here at play than a simple soundbite solution," said Christopher Gindlesperger, spokesperson for the association. "We need a comprehensive look at this to make sure there aren't unintended consequences for chocolate and candy companies."

In addition to erythrosine and titanium dioxide, the bill would ban potassium bromate and propylparaben, two chemicals used in baked goods, and brominated vegetable oil, which is used in some store brand sodas.

The U.S. has allowed dyes like erythrosine in food since 1907. Decades later, researchers found rats exposed to lots of erythrosine over a long time developed thyroid cancer. In 1990, based in part off of that research, the U.S. Food and Drug Administration banned erythrosine from cosmetics.

Consumer safety groups have tried for years to get the agency to ban the chemical in food to no avail. Researchers have since linked the chemical to other health problems besides cancer, including hyperactivity and other neurobiological behaviors in some children, according to a 2021 report from the California Environmental Protection Agency's Office of Environmental Health Hazard Assessment.

The International Association of Color Manufacturers argued in a 2021 statement that California study was "based on insufficient scientific evidence."

Titanium dioxide is a white powder that, because it scatters light, can make colors appear brighter. It's been used for 100 years in products like paints, paper, rubber, toothpaste, soap and food coloring. The International Agency for Research on Cancer has listed titanium dioxide as a possible carcinogen in humans. The Titanium Dioxide Manufacturers Association maintains there is no evidence of it causing cancer in humans.

The candy industry insists the chemicals California is considering banning "have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe," according to a letter signed by various industry trade groups.

"These scientifically based regulatory processes should be allowed to continue without second guessing their outcomes," the letter stated.

Scott Faber, senior vice president for governmental affairs for the nonprofit Environmental Working Group, said the only reason the chemical is still deemed safe by federal regulators is because of a loophole that has been exploited by chemical companies. He says regulators have not reviewed their prior decisions in light of new science.

"The confectioners and the food industry know the review process at the FDA is broken. They have been hiding behind it for decades. We shouldn't let them hide behind it anymore," Faber said. "If FDA won't fix this review system and keep us safe from dangerous chemicals in our food, it's up to states like California to keep us safe."

Just Born Inc., the Pennsylvania-based company that makes Peeps, said in a statement the company complies with FDA regulations and gets their "ingredients and packaging exclusively from reputable suppliers who adhere to high quality and safety standards."

The company noted its development team is looking for other options, "including colors derived form natural sources that can deliver the same visual impact and stability as their certified counterparts."

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Daley reported from San Francisco.

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- **Citation (apa Style)**
  California lawmaker wants Peeps to change its ingredients. (2023, April 7).*Press Democrat, The (Santa Rosa, CA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/190C51B7FA923F58.